

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Peter Cymrot	Team: Team # 3	CCRB Case #: 200407931	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 08/11/2004 4:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/11/2006	Precinct: 47
Date/Time CV Reported Thu, 08/12/2004 8:39 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/16/2004 12:20 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Tyrone Thompson	26525	929254	047 PCT
3. POM Robert Rodriguez	21191	926015	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	A . Complainant Unavailable
B . POM Tyrone Thompson	Force: PO Tyrone Thompson used physical force against § 87(2)(b)	B . Complainant Unavailable
C . POM Robert Rodriguez	Force: PO Robert Rodriguez hit § 87(2)(b) against an inanimate object.	C . Complainant Unavailable

Synopsis

This complaint was initiated on August 12, 2004 when § 87(2)(b) called 911 from Bronx Central Booking to complain about the manner in which he was arrested on August 11, 2004. § 87(2)(b) stated that he and his brother, § 87(2)(b) were accused of assault in front of their residence at § 87(2)(b) in the Bronx. § 87(2)(b) stated that “he and his brother were manhandled by police officers in a bar.” When § 87(2)(b) attempted to explain to the officers what had happened, PO Tyrone Thompson allegedly handcuffed him and stomped on his hand while PO Robert Rodriguez “slammed § 87(2)(b) on the pool table.” § 87(2)(b) could not identify the other officers involved. Later on August 12, 2004, officers from IAB did a callout to Bronx Central Booking and interviewed § 87(2)(b). § 87(2)(b) reiterated his complaint that PO Thompson, PO Rodriguez and other officers used excessive force. § 87(2)(b) complained of pain and swelling to his right hand, including scratches, and a scrape to his knee. § 87(2)(b) obtained medical treatment for those injuries.

The CCRB received this case on August 16, 2004. The investigator obtained contact information for § 87(2)(b) and § 87(2)(b) from the IAB log and callout, as well as documents such as the complaint report. The investigator called § 87(2)(b) and § 87(2)(b) who share a residence and a telephone number, on six occasions from August 18, 2004 to August 31, 2004. These calls were made during different parts of the day. The investigator received no answer during any of these calls; at one point the investigator received a busy signal but a subsequent call led to numerous rings and no answer. The investigator also mailed please-call letters to § 87(2)(b) and § 87(2)(b) on August 18, 2004 and August 24, 2004. Despite these contact attempts, the investigator has been unable to reach § 87(2)(b) and § 87(2)(b) and they have not contacted the CCRB. The investigator performed searches for alternative contact information—including searches using BADS, CTS, OCA, COLES, Metrosearch, and 411—with negative results. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigator has made the requisite attempts to contact § 87(2)(b) and § 87(2)(b) without success. Based on the above, it is recommended that this case be closed as Complainant Unavailable.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: